

Patchava Gargaie Malavika vs Kondasani Venkata Srikanth on 16 April, 2025

APHC010485022024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

WEDNESDAY ,THE SIXTEENTH DAY OF APRIL
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 371/2024

Between:

Patchava Gargaie Malavika

...PETITIONER

AND

Kondasani Venkata Srikanth

...RESPONDENT

Counsel for the Petitioner:

1. MALIREDDY GOWTHAM

Counsel for the Respondent:

1. PARTY IN PERSON

The Court made the following:

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908,(for short 'the C.P.C.') seeking to withdraw F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions- cum-Family Judge, Visakhapatnam and transfer the same to the Judge, Family Court, Nellore, S.P.S.R. Nellore District, for trial.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and the marriage of the petitioner with the respondent was solemnized on 22.04.2018 at Anil Gardens,

Nellore, as per the Hindu Rites and Caste Customs. Due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at her parents' house at Nellore. The petitioner/wife pleaded that, she lodged a complaint against the respondent/husband in Crime No.57 of 2020, for the offences punishable under Section 498-A, 506 of I.P.C. and under Sections 3 & 4 of Dowry Prohibition Act, 1961, before Disha Women Police Station. After completion of investigation, the same was numbered as vide C.C.No.1093 of 2020 on the file of the Judicial Magistrate of First Class, Special Mobile Court, Nellore, the same is pending for adjudication and she also Domestic Violence Case vide D.V.C.No.54 of 2022 on the file of the Special Excise Judicial Magistrate of First Class, Nellore and all the two (2) cases are pending for adjudication before the competent Courts at Nellore, S.P.S.R. Nellore District.

II. The petitioner/wife further pleaded that to cause unnecessary inconvenience to her, the respondent/husband had filed F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions-cum-Family Judge, Visakhapatnam, under Section 12(1)(c) of the Hindu Marriage Act, 1955, for nullity of the marriage with false averments and the same is also pending for adjudication.

III. The petitioner/wife further pleaded that, she being a woman, residing separately and also depending upon her parents at Nellore, it is very difficult for her to travel at a distance of more than 600 Kms from Nellore to Visakhapatnam to attend the case proceedings on each and every adjournment without any male support and that she is constrained to file the present transfer petition seeking to withdraw F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions-cum-Family Judge, Visakhapatnam and transfer the same to the Judge, Family Court, Nellore, S.P.S.R. Nellore District.

3. Respondent/party in person represented that he has completed his Graduation in law and he is now practicing as a Junior Advocate in the Office of Senior Counsel at Visakhapatnam. He would further represent that the petitioner/wife herein filed false cases against him before the competent Courts at Nellore and there are no valid grounds to consider the present petition filed by the petitioner/wife and the present Transfer Civil Miscellaneous Petition may be dismissed.

4. Heard learned counsel for the petitioner and the respondent/party in person.

5. Perused the material available on record.

6. The material on record prima facie goes to show that, the petitioner/wife has been residing separately at her parents' house at Nellore. She has instituted two (2) cases i.e., C.C.No.1093 of 2020 on the file of the Judicial Magistrate of First Class, Special Mobile Court, Nellore, S.P.S.R. Nellore District and Domestic Violence Case vide D.V.C.No.54 of 2022 on the file of the Special Excise Judicial Magistrate of First Class, Nellore, against the respondent/husband herein and the said two (2) cases are pending for adjudication. As seen from the material on record, the respondent/husband has also instituted a case i.e., F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions-cum-Family Judge, Visakhapatnam, under Section 12(1)(c) of the

Hindu Marriage Act, 1955, for nullity of the marriage and the same is also pending for adjudication.

7. The Apex Court in a case of N.C.V. AISHWARYA VS A.S. SARAVANA KARTHIK SHA¹, held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. On considering the submissions made by the learned counsel for the petitioner and respondent/party in person and in view of the ratio laid down by 2022 LiveLaw (SC) 627 the aforesaid case law and on considering the facts and circumstances of the case that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking to withdraw F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions- cum-Family Judge, Visakhapatnam and transfer the same to the Judge, Family Court, Nellore, S.P.S.R. Nellore District. Further, the respondent/party in person has represented that he is practicing as a Junior Advocate in the office of Senior Counsel at Visakhapatnam, he requested this Court to impose some time limit on the transferee Court to dispose of the main case. Therefore, I am of the opinion that it is desirable to dispense with the personal appearance of the respondent/husband herein i.e., the petitioner in F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions-cum-Family Judge, Visakhapatnam, before the transferee Court at Nellore.

9. In the result, the Transfer Civil Miscellaneous Petition is allowed and F.C.O.P.No.1326 of 2023 on the file of the V Additional District and Sessions- cum-Family Judge, Visakhapatnam, is hereby withdrawn and transferred to the Judge, Family Court, Nellore, S.P.S.R. Nellore District. The learned V Additional District and Sessions-cum-Family Judge, Visakhapatnam, shall transmit the case record in F.C.O.P.No.1326 of 2023, to the Judge, Family Court, Nellore, S.P.S.R. Nellore District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. Further, the personal attendance of the respondent/husband i.e., the petitioner in F.C.O.P.No.1326 of 2023, to the Judge, Family Court, Nellore, S.P.S.R. Nellore District, has been dispensed with before the transferee Court i.e., Judge, Family Court, Nellore, S.P.S.R. Nellore District. Both the parties are directed to appear before the Judge, Family Court, Nellore, S.P.S.R. Nellore District, on 08.05.2025, at 10.30 a.m. Later the Judge, Family Court, Nellore, S.P.S.R. Nellore District, is instructed not to insist for the personal appearance of the respondent herein i.e., the petitioner in F.C.O.P.No.1326 of 2023, as long as his

counsel is attending the Court proceedings and representing the case except on the day when reconciliation proceedings are being taken up or on the day when his cross-examination is required to be recorded or on any other day when his personal appearance is required as directed by the learned Judge, Family Court, Nellore, S.P.S.R. Nellore District. The learned Judge, Family Court, Nellore, S.P.S.R. Nellore District, is hereby instructed to dispose of the main case itself within three (3) months from the date of receipt of the record from the V Additional District and Sessions-cum-Family Judge, Visakhapatnam and report the compliance to the Registry. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

16.04.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: